NETI PRELIMS REVISION SERIES

Topic 09 | Governor's Role & Emergency Provisions

नेति नेति — Less noise. More clarity.

Why this matters for Prelims: Polity swings wildly year to year (6 questions in 2016, 22 in 2017, 19 in 2024) but Governor and Emergency questions appear in almost every high-Polity year. The 15-year PYQ analysis flags Governor's role as a recurring Statement I/II source — the post-2020 format tests causal reasoning, not just facts. Emergency provisions are tested on procedural precision: approval timelines, majority type, which rights are suspended automatically vs by Presidential order, and what the 44th Amendment changed. Getting one number or word wrong loses the mark.

Governor's discretion — the only four that matter: (1) Appointment of CM when no clear majority. (2) Dismissal of ministry that has lost confidence but refuses to resign. (3) Dissolution of Assembly when CM advises it after losing majority. (4) Reservation of Bills for President's consideration. Everything else — the Governor acts on Cabinet advice.

Three Emergencies — numbers to lock: Article 352 = National Emergency (war/external aggression/armed rebellion). Article 356 = President's Rule (state constitutional failure). Article 360 = Financial Emergency. Only 352 and 356 have been proclaimed. 360 has never been used.

44th Amendment 1978 — the reform to know: "Internal disturbance" replaced by "armed rebellion" for Article 352. Written Cabinet advice mandatory before proclamation. Lok Sabha can pass a resolution by simple majority to revoke. SC can review proclamation. All three added by 44th Amendment.

GOVERNOR — APPOINTMENT, TENURE & POSITION

Aspect	Constitutional Position — Exam Precise
Appointment	Appointed by the President under Article 155. On the advice of the Prime Minister (not CM, not Council of Ministers collectively). Convention (Sarkaria Commission recommendation): consult CM of the state, but this is not constitutionally mandated.
Qualification	Must be a citizen of India. Must have completed 35 years of age. Should not be a member of either House of Parliament or state legislature. Should not hold any other office of profit. Article 157–158.
Tenure	5 years by convention only. Constitutionally holds office during pleasure of the President (Article 156). Can be removed, transferred, or given extension at any time. No fixed tenure as a constitutional right. No grounds for removal specified — President's pleasure is absolute.
Salary & Privileges	Salary charged to Consolidated Fund of the State. Entitled to official residence (Raj Bhavan) without rent. Salary cannot be reduced during term of office. Enjoys immunity from criminal proceedings while in office. Civil suits require 2 months' notice.

Multiple States	President can appoint one Governor for two or more states (Article 153 proviso, added by 7th Amendment 1956). Currently used for small states and UTs with legislatures (e.g., Lt. Governor of Puducherry — not technically a Governor but analogous).
Oath	Administered by Chief Justice of the High Court of that state (Article 159). If CJ is unavailable, senior-most HC judge. Not administered by the President.

NOTE: Governor is NOT elected. Not a member of Parliament or any legislature. The "pleasure of President" means no removal through impeachment, no court challenge to removal. SC held in B.P. Singhal case (2010): removal must not be arbitrary, but no judicial review of the reason.

GOVERNOR'S POWERS — CONSTITUTIONAL, DISCRETIONARY & DISPUTED

Power Type	Specific Power	Exact Rule — UPSC Level
EXECUTIVE (on Council of Ministers' advice)	Appointment of CM	Appoints leader of majority party/alliance as CM. Discretion arises only when no single party has clear majority — Governor must assess who can command the House. Sarkaria Commission: invite leader of largest single party first. Actual discretion is significant in hung assemblies.
	Appointment of other ministers	On advice of CM. Governor cannot refuse CM's choice of minister — though Governors have disputed this. SC: Governor cannot sit on advice indefinitely.
	Dismissal of ministry	Can dismiss only when ministry loses majority and refuses to resign or face the House. Cannot dismiss a ministry that commands majority — Shamsher Singh case (1974) established this clearly.
LEGISLATIVE	Summoning, proroguing, dissolving Assembly	Summons and prorogues on CM's advice. Dissolution: normally on CM's advice after vote of no-confidence. Discretion exists if CM advises dissolution after losing majority to avoid floor test — Governor may refuse and invite opposition.
	Addressing the legislature	Addresses first session after each general election and first session each year (Article 176). Address prepared by Cabinet — Governor reads it but cannot modify it.
	Assent to Bills	Four options: (1) Give assent. (2) Withhold assent. (3) Return for reconsideration (except Money Bills). (4) Reserve for President's consideration. If returned and re-passed, Governor must assent — cannot withhold indefinitely (SC ruling). Pocket veto for state bills: Constitution does not set a time limit — has been misused.
	Reservation of Bills for President	Mandatory reservation: Bills affecting HC jurisdiction. Discretionary reservation: Bills inconsistent with Union law, Bills threatening national interest, Bills imposing unreasonable

		restrictions on trade/commerce. This is genuine discretion — not subject to ministerial advice.
	Ordinance-making power	Article 213. Can promulgate ordinances when legislature is not in session. On advice of Council of Ministers — not discretionary. Ordinance has same force as law. Must be laid before legislature within 6 weeks of reassembly; lapses if not approved. Cannot be used repeatedly to bypass legislature (D.C. Wadhwa case, 1987).
JUDICIAL	Pardoning power	Article 161. Governor can grant pardon, reprieve, respite, remission, suspension, or commutation of sentences for offences against state laws. Cannot pardon in death sentence cases — only President can (Article 72). Governor also cannot pardon in court martial cases — only President.
DISCRETIONARY (no ministerial advice)	Constitutional discretion	Expressly stated in Constitution: (1) Appointment of CM in hung assembly. (2) Dismissal of ministry that has lost confidence. (3) Dissolution of assembly (limited). (4) Reservation of bills for President. (5) Seeking information from CM (Article 167). (6) Administration of tribal areas in certain states (Schedule 6 states like Assam, Meghalaya, Tripura, Mizoram).
	Situational discretion	Not explicitly mentioned but arises from circumstances: (1) Appointing CM when no clear majority. (2) Refusing dissolution if CM lost vote and wants snap election. (3) Recommending President's Rule (Article 356 report). These are political flashpoints — UPSC tests the constitutional basis.

NOTE: Governor cannot pardon death sentences — only President (Article 72). Governor cannot pardon sentences awarded by court martial — only President. Both distinctions have appeared in UPSC questions.

GOVERNOR vs. PRESIDENT — KEY DIFFERENCES UPSC EXPLOITS

Aspect	President	Governor
Election/Appointment	Elected by Electoral College (MPs + MLAs)	Appointed by President on PM's advice
Removal	Impeachment by Parliament (Art. 61) — 2/3 of total membership of each House	At pleasure of President — no formal process required, no grounds needed
Pardoning power — death sentence	YES — Article 72 (President only)	NO — Article 161 excludes death sentences
Pardoning power — court martial	YES — Article 72 includes court martial sentences	NO — Article 161 excludes court martial

Veto on Bills	Absolute veto (private member bills), suspensive veto, pocket veto (no time limit for state bills). No veto for Money Bills.	Cannot pocket veto indefinitely (SC ruling). Cannot withhold assent to re-passed bill. Must assent or reserve for President.
Emergency powers	Proclaims all three emergencies. National Emergency: written Cabinet advice needed.	Recommends President's Rule (Art. 356) — does not proclaim it. President can act even without Governor's report.
Salary charged to	Consolidated Fund of India (Central)	Consolidated Fund of the State
Oath administered by	Chief Justice of India (or senior-most SC judge)	Chief Justice of the High Court of that state

THREE EMERGENCIES — ARTICLE, GROUNDS, APPROVAL & EFFECT

Article	Type	Grounds & Proclamation	Approval, Duration & Key Effect
352	National Emergency (war / external aggression / armed rebellion)	Proclaimed by President on written advice of Cabinet (Council of Ministers headed by PM — not just PM alone). 44th Amendment: written Cabinet advice mandatory. Grounds (44th Amendment 1978): War, External Aggression, Armed Rebellion (replaces "internal disturbance"). "Armed rebellion" = higher threshold than "internal disturbance."	Parliamentary approval: within 1 month of proclamation. Special majority: 2/3 of members present and voting + more than 50% of total membership of each House. Duration: 6 months; renewable by Parliament every 6 months (special majority each time). Revocation: President can revoke. Lok Sabha can pass a simple majority resolution requiring revocation (44th Amendment). RS cannot pass such a resolution. Effect on Fundamental Rights: Article 358 — Art. 19 rights automatically suspended if emergency is on grounds of war/external aggression only (not armed rebellion). Article 359 — President can by order suspend enforcement of other FRs (except Arts. 20 & 21 which can NEVER be suspended).
356	President's Rule (State Emergency / Constitutional Failure)	Proclaimed by President when satisfied that government of a state cannot be carried on in accordance with the Constitution. "Satisfied" =	Parliamentary approval: within 2 months of proclamation (simple majority — unlike 352 which needs special majority).

		on Governor's report OR otherwise (President can act without Governor's report — "or otherwise" is tested). No requirement of Cabinet advice before proclamation (unlike Article 352). No written Cabinet advice needed. SC review: In S.R. Bommai case (1994), SC held proclamation is justiciable. Floor test must precede imposition — Governor cannot recommend 356 without giving CM a chance to prove majority.	Duration: 6 months initially. Extended by Parliament by 6 months at a time up to maximum 3 years. Beyond 1 year: only if National Emergency is in force AND Election Commission certifies election cannot be held. Effect: President assumes state executive functions. Parliament legislates for the state. State legislature dissolved or suspended. HC continues to function — HC jurisdiction NOT affected. Revocation: no special majority needed to revoke (unlike proclamation which has no majority requirement either). Used 130+ times in India's history.
360	Financial Emergency	Proclaimed by President when financial stability or credit of India or any state is threatened. No specific grounds beyond "financial stability" — widest executive discretion. Has NEVER been proclaimed in India's history. Created in the context of the 1930s US Great Depression analogy.	Parliamentary approval: within 2 months (simple majority). Duration: continues indefinitely until revoked by President. No maximum period stated. Effect: President can direct states to observe financial propriety. Can reduce salaries of government officials including HC and SC judges. Can require all Money Bills of states to be reserved for President's consideration. Unique: During Financial Emergency, President CAN direct reduction of SC/HC judges' salaries — the only situation where this is constitutionally permitted.

NOTE: Parliamentary approval majority — 352 needs SPECIAL majority (2/3 present & voting + 50% total). 356 and 360 need only SIMPLE majority. This difference is the most-tested numerical fact in emergency provisions.

FUNDAMENTAL RIGHTS DURING NATIONAL EMERGENCY — ART. 358 vs. ART. 359

This is where most students lose marks. The automatic vs. Presidential order distinction, and the armed rebellion exception, generate Statement I/II questions every 2–3 years.

Article	What It Does	Critical Details — UPSC Level

358	Automatic suspension of Article 19 during National Emergency	Article 19 (six freedoms) stands AUTOMATICALLY suspended the moment National Emergency is proclaimed. No separate Presidential order needed. 44th Amendment restriction: Article 358 applies ONLY if emergency is on grounds of war or external aggression. If emergency is on grounds of armed rebellion — Article 358 does NOT apply. Article 19 remains operative. Suspension applies only to laws enacted by Parliament inconsistent with Art. 19 — not to executive action. State laws inconsistent with Art. 19 do not get protection.
359	Presidential order suspending enforcement of other Fundamental Rights	NOT automatic. President must issue a separate order specifying which FRs cannot be enforced in court during the emergency. Parliament must approve this order. Absolute limits: Articles 20 and 21 can NEVER be suspended under Article 359, regardless of the type of emergency or Presidential order. This is a post-44th Amendment absolute protection. Scope: enforcement in courts is suspended — the right itself is not taken away. Citizens cannot approach courts during this period, but the right revives fully when the order is withdrawn. Applies to the territory and duration specified in the Presidential order — can be limited in scope.

FR Cluster	Suspension Mechanism	Exception / Limit
Article 19 (six freedoms)	AUTOMATIC under Art. 358	Only if emergency = war/external aggression. NOT for armed rebellion. 44th Amendment.
Articles 20 & 21	CANNOT be suspended under any circumstances	Absolute. Even Presidential order under Art. 359 cannot touch these. 44th Amendment guarantee.
Other Fundamental Rights (Arts. 14, 15, 16, etc.)	By Presidential order under Art. 359 only	Not automatic. Requires separate order. Order must be approved by Parliament. Can be territory/time limited.
Articles 32 & 226 (right to approach SC/HC)	Art. 32 enforcement suspended by Art. 359 order. Art. 226 (HC writ) cannot be suspended by Art. 359.	HC jurisdiction survives National Emergency (Art. 226 cannot be taken away by Art. 359). Only Parliament can restrict HC jurisdiction under Art. 228 etc.

NOTE: The 44th Amendment 1978 was specifically designed to prevent the Indira Gandhi Emergency (1975–77) from being repeated. Changes: "armed rebellion" replaces "internal disturbance"; written Cabinet advice mandatory; Arts. 20 & 21 made unsuspendable; Lok Sabha can revoke by simple majority.

S.R. BOMMAI CASE (1994) — THE JUDICIAL BRAKE ON ARTICLE 356

Ruling / Principle	What It Means — Exam Ready
Proclamation is justiciable	Courts CAN review whether imposition of President's Rule was justified. It is not purely a political question. SC can strike down a mala fide proclamation.
Floor test must precede 356	Governor cannot recommend President's Rule without first giving the CM an opportunity to prove majority on the floor of the House. Report based on Governor's subjective assessment without a floor test = suspect.
Restoration if invalidated	If SC strikes down the proclamation, the dissolved assembly can be restored. This was a new remedy — previously thought impossible once assembly was dissolved.
Secularism as basic feature	A state government that acts against secularism can be dismissed under Art. 356. The Bommai case established that secularism is a basic feature of the Constitution relevant to Art. 356 grounds.
Parliamentary approval condition	Until Parliament approves the proclamation within 2 months, President cannot exercise powers of dissolving the assembly irreversibly. Assembly can only be dissolved after Parliamentary approval.

NOTE: S.R. Bommai case (1994) is to Article 356 what Kesavananda Bharati (1973) is to constitutional amendments — the judicial intervention that set limits on executive power. UPSC has tested specific holdings of Bommai across multiple years.

EMERGENCY PROVISIONS — SIDE-BY-SIDE QUICK REFERENCE

Feature	Art. 352 National Emergency	Art. 356 President's Rule	Art. 360 Financial Emergency
Cabinet advice before proclamation	YES — written Cabinet advice mandatory (44th Amdt)	NO — President acts on own satisfaction or Governor's report	NO — President acts on own satisfaction
Parliamentary approval within	1 MONTH	2 MONTHS	2 MONTHS
Majority for approval	SPECIAL — 2/3 present+voting AND 50% total membership	SIMPLE majority	SIMPLE majority
Maximum duration	Indefinite (renewed every 6 months with special majority)	3 years maximum (beyond 1 year needs National Emergency + EC certification)	Indefinite (no maximum)
Lok Sabha simple majority revocation	YES — Lok Sabha can revoke (44th Amdt). RS cannot.	No special provision	No special provision

SC judicial review	YES (Minerva Mills, 1980)	YES (S.R. Bommai, 1994)	Not tested in court
Art. 19 suspended	Automatically (Art. 358) — only if war/ext. aggression. NOT for armed rebellion.	Not applicable	Not applicable
HC jurisdiction	Continues. Art. 226 (HC writs) cannot be suspended by Art. 359 order.	Continues. HC not affected by President's Rule.	Continues.
Proclaimed in practice	3 times (1962, 1971, 1975)	130+ times (most misused)	NEVER

STATEMENT I / II PRACTICE PAIRS — GOVERNOR & EMERGENCY

These are constructed at the precision level of 2021–2025 papers. Work through each before reading the answer.

Statement I	Statement II	Answer & Why
The Governor of a state holds office for a fixed term of five years.	The Constitution provides that the Governor shall hold office during the pleasure of the President.	I is FALSE. II is TRUE. Answer: (d). Five years is a convention, not a constitutional guarantee. Pleasure of President = can be removed any time. The "fixed term" framing is a standard UPSC trap.
The Governor cannot reserve a Money Bill passed by the state legislature for the President's consideration.	Money Bills can only be delayed, not reserved, as they are financial in nature.	I is FALSE. II is FALSE. Answer: (d) — both incorrect, but this is unusual. Governor CAN reserve any Bill including Money Bills for President. There is no constitutional bar. Both statements are wrong. Answer would be framed as "neither is correct."
A proclamation of National Emergency must be approved by Parliament within one month.	The approval requires a special majority in both Houses of Parliament.	Both TRUE. II adds necessary detail to I. Answer: (a). 1 month + special majority (2/3 present+voting AND 50% total) = the two exam facts in one pair.
During a National Emergency proclaimed on grounds of armed rebellion, Article 19 freedoms are automatically suspended.	Article 358 provides for automatic suspension of Article 19 during all National Emergencies.	I is FALSE. II is FALSE. Answer: (d). Art. 358 applies only to war/external aggression emergencies — NOT armed rebellion. Both statements miss this 44th Amendment restriction.
The President can proclaim President's Rule in a state even without a report from the Governor.	Article 356 states the President may act on the Governor's report "or otherwise."	Both TRUE. II correctly explains I. Answer: (a). "Or otherwise" = President can form own satisfaction without Governor's report. Tested directly in 2021.

Articles 20 and 21 cannot be suspended even during a National Emergency.	The 44th Constitutional Amendment Act of 1978 placed Articles 20 and 21 beyond the reach of Presidential orders under Article 359.	Both TRUE. II correctly explains I. Answer: (a). Pre-44th Amendment, these could theoretically be suspended. Post-1978, they are absolute. Know the amendment.
Parliamentary approval for President's Rule under Article 356 requires a special majority.	Article 356 is a more frequently invoked provision than Article 352, and therefore requires a higher threshold for approval.	I is FALSE. II is FALSE. Answer: (d). Art. 356 approval requires only simple majority. Frequency of use has no bearing on majority requirement. Classic double-false pair testing both the majority type and the reasoning.
The Governor can dismiss the Council of Ministers even if it commands a majority in the state legislature.	The Governor's executive powers are exercised independently of the advice of the Council of Ministers.	I is FALSE. II is FALSE. Answer: (d). Governor cannot dismiss a majority ministry (Shamsher Singh case). Governor acts on Cabinet advice in almost all matters. Both statements are incorrect.

NOTE: Watch for double-false pairs (both I and II incorrect) — answer (d) in UPSC format. These appear more in post-2022 papers. Do not assume one statement must be true.

RECENT IN NEWS (2023–2025) — PRELIMS 2026 ANGLE

Development	Why Relevant for 2026 Prelims
Governor–CM conflicts (multiple states, 2023–24)	Governors in Tamil Nadu, Kerala, West Bengal, Telangana sat on Bills passed by state legislatures for months. SC in Nov 2023 ruled: Governor cannot withhold assent indefinitely; must either give assent, return for reconsideration, or reserve for President within a reasonable time. SC set a timeline. Tests: Governor's options on Bills, pocket veto, judicial review of Governor's inaction.
SC on Governor's assent—Nov 2023	In State of Punjab vs. Principal Secretary to Governor of Punjab: SC held Governor cannot sit on Bills indefinitely. If Bill is re-passed after return, Governor MUST give assent. Cannot reserve re-passed Bills. This directly affects Statement I/II questions on Governor's powers over legislation.
Manipur — extended President's Rule?	Ethnic conflict in Manipur (2023 onwards) raised questions about Art. 356 applicability. Government chose not to impose President's Rule despite violence. Tests: conditions for Art. 356, Bommai case limits, difference between law-and-order failure and constitutional failure of government.
Jharkhand—Governor–CM standoff 2023	Governor delayed swearing-in of new CM after election results. SC intervened. Tests: Governor's role in government formation, discretion in appointing CM, limits on delay.
SC: Governor not a free agent (2024)	SC reiterated in multiple cases that Governor is a constitutional functionary, not an independent political authority. Must act on Cabinet advice in all matters except expressly discretionary ones. Tests: the exact list of discretionary powers, Shamsher Singh principle.

★ PYQ Insight:

2024 — Statement I/II: "The Governor can reserve a Bill for the President's consideration even if the state legislature has passed it. This power is exercised at the Governor's discretion and is not subject to ministerial advice." Both TRUE. II explains I. Answer: (a). Bill reservation is one of Governor's few genuine discretionary acts — not bound by Cabinet.

2023 — "Which of the following statements about the Governor is/are correct?" Common options: Governor is appointed by the President on CM's advice (FALSE — PM's advice), Governor can be transferred (TRUE — same order as appointment), Governor has a fixed tenure of 5 years (FALSE — holds at pleasure of President). The "5-year tenure" trap is planted almost every paper.

2021 — President's Rule (Article 356): "The President can proclaim it on the Governor's report or otherwise." The word "otherwise" means President can act even without Governor's report — on his own satisfaction. This was tested as a statement. Many students miss "or otherwise."

2020 — DPSP enforceability in the context of emergency: "During a National Emergency, Fundamental Rights under Article 19 are automatically suspended." TRUE only if emergency is on grounds of war/external aggression — NOT if on grounds of armed rebellion. The distinction between Article 358 (automatic suspension of Art 19) vs Article 359 (Presidential order needed) was tested.

2017 — Matching: emergency type with approval requirement. National Emergency (352): Cabinet approval before proclamation + Parliamentary approval within 1 month by 2/3 + simple majority. President's Rule (356): no Cabinet approval needed, Parliamentary approval within 2 months. Financial Emergency (360): Parliamentary approval within 2 months. Students confused 1 month vs 2 months.

Recurring trap — Governor's pleasure ≠ 5-year fixed term. Governor serves during pleasure of President — can be removed any time, transferred, or given extended tenure. The 5-year period is a convention, not a constitutional right. UPSC has tested "Governor has security of tenure" — FALSE.

3 THINGS UPSC TESTS FROM THIS TOPIC

- **Governor's discretionary powers — the exact list, nothing more.** UPSC gives a list of Governor's actions and asks which are exercised at discretion. Know the four: (1) Appointment of CM in hung assembly. (2) Dismissal of ministry that has lost confidence and refuses to resign. (3) Dissolution of Assembly (limited circumstances). (4) Reservation of Bills for President's consideration. Everything else — ordinances, appointments, addressing legislature, assent to bills — is on Cabinet advice. The trap: ordinance-making looks discretionary but is on Cabinet advice. Reservation of bills looks ministerial but is genuinely discretionary.
- **The 44th Amendment 1978 — every change it made to emergency provisions.** "Internal disturbance" replaced by "armed rebellion." Written Cabinet advice mandatory for Art. 352. Lok Sabha can revoke by simple majority. Arts. 20 & 21 made unsuspendable under Art. 359. Art. 358 (automatic Art. 19 suspension) restricted to war/external aggression only — not armed rebellion. These are five separate facts from one Amendment. UPSC tests them individually across different years. Know all five.
- **Approval majority — National Emergency needs special, President's Rule and Financial Emergency need simple.** This is the most-tested numerical distinction in emergency provisions. Art. 352: within 1 month, special majority (2/3 present+voting AND 50% total). Art. 356: within 2 months, simple majority. Art. 360: within 2 months, simple majority. The "1 month vs 2 months" and "special vs simple" are tested both directly and as wrong-option plants. Also know: Lok Sabha alone can revoke a 352 proclamation by simple majority resolution — Rajya Sabha cannot do this.

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